

26AVUD00060 26AVUD00060

County: los-angeles

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Case Number: 26AVUD00060 Hearing Date: July 28, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

DOROTHEA COHEN,

Plaintiff,

v.

DANIEL MCFATE, and DOES 1 through 10, inclusive,

Defendants.

Case Number 26AVUD00060

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 28, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is an unlawful detainer case arising from Defendant Daniel McFate's (Defendant) alleged refusal to exit real property owned by Plaintiff Dorothea Cohen (Plaintiff) and located at 1005 Justin Court, Lancaster, CA 93535 (the Property).

On January 13, 2026, Plaintiff filed a complaint against Defendant, asserting four causes of action for (1) forcible detainer, and (2-4) three causes of action for unlawful detainer. Specifically, Plaintiff alleges that in April 2021, Plaintiff, who is disabled, hired Defendant as her caretaker by oral agreement and allowed him in exchange to reside with her on the Property. (Compl., ¶¶ 11-12.) On September 12, 2025, Plaintiff terminated Defendant's employment as her caretaker. (Id at ¶ 13.) On September 22, 2025, Defendant reentered the Property after having relinquished possession, continues to occupy the premises by force, has refused to leave despite Plaintiff's numerous requests to do so, and since his termination, has charged items to himself to Plaintiff's credit card. (Id at ¶¶ 3-5, 20, 27.)

On February 3, 2026, Defendant filed his answer, which asserts a specific denial of all causes of action and allegations, and alleges Plaintiff breached the warranty of habitability and filed the present action as retaliation. (Answer, p. 1, ¶¶ 2(b)(1)-(2), 3(a), (f).)

On February 3, 2026, Kaitlin McFate, who resides at the Property, filed a prejudgment claim of right to possession.

On February 23, 2026, default was entered against Kaitlin McFate.

On July 13, 2026, Plaintiff filed the present motion for summary judgment, or in the alternative, motion for summary adjudication.

The motion is unopposed.

II. Legal Standard

Standard for Motion for Summary Judgment – Summary judgment is proper “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.)

Until the moving party has discharged its burden of proof, the opposing party has no burden to come forward with any evidence. Once the moving party has discharged its burden as to a particular cause of action, however, the opposing party may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (See Code Civ. Proc. § 437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

The court must grant a motion for summary judgment if, after all admissible evidence is considered, there is no triable issue as to any material fact. (See Code Civ. Proc. § 437c, subd. (c).) The court has no discretion to deny a summary judgment motion where the moving party has met their burden, the opposing party has failed to establish any triable issue of material fact exists, and the moving party is entitled to judgment as a matter of law. (Krasley v. Superior Court (1980) 101 Cal.App.3d 425, 432.)

A party may also move for summary adjudication as to one or more causes of action within an action, one or more claims for damages, or one or more issues of duty if the party contends the cause of action has no merit, that there is no merit to a

claim for damages, or that one or more defendants did not owe a duty to the plaintiff. (Code Civ. Proc., § 437c, subd. (f)(1).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment, shall proceed in all procedural respects as a motion for summary judgment, and shall only be granted if it completely disposes of a cause of action, a claim for damages, or an issue of duty. (Id at § 437c, subd. (f)(1)-(2).)

III. Discussion

Application – Plaintiff moves for summary judgment on the grounds that there is no triable issue of material fact that Defendant is guilty of forcible and unlawful detainer.

a. Plaintiff's Burden

Plaintiff moves for summary judgment on the grounds that Plaintiff has established all elements necessary for an eviction judgment and that no triable issue of disputed material fact exists.

In support of her motion, Plaintiff has offered her Declaration, in which she sets forth the facts of the underlying circumstances giving rise to this action. Plaintiff states she is the owner of the Property and is a 64-year-old disabled woman who must use a wheelchair to be mobile and requires assistance with day-to-day living tasks, including dressing, bathing, and preparing meals, and cannot live on her own without assistance. (Decl., ¶ 3.) In 2023, Plaintiff met Defendant through church, and made an oral agreement with Defendant that he would work as her caretaker in exchange for living in her house, the Property. (Decl., ¶ 4.) Defendant then had access to Plaintiff's credit cards, debit card, and bank account. (Decl., ¶ 4.) Plaintiff offers a text from Defendant to Plaintiff on September 10, 2025 confirming the scope and nature of his right to reside on the Property, in which he states, "I was a friend staying there for free in exchange for helping you. That is considered paying rent." (Ex. 3.)

Plaintiff's Declaration further states that in October of 2024, Defendant's wife, Kaitlin McFate, moved into the Property, and by spring of 2025, the relationship between Plaintiff and Defendant began to deteriorate along with Defendant's care of Plaintiff. (Decl., ¶ 4.) Following water damage at the Property in the summer of 2025, which caused the heating and cooling systems to fail, the parties moved to a motel during repairs, and Plaintiff paid for both her and Defendant's lodging through insurance. (Decl., ¶ 5.)

While living at the motel, Plaintiff was visited by a nurse and social worker who expressed concern about the inadequate care she was receiving, recommended Plaintiff move into a board and care home. (Decl., ¶ 6.) Plaintiff moved into a professional care home and terminated Defendant's employment as her caretaker via telephone on September 4, 2025. (Decl., ¶ 7.) After termination of Defendant's employment, Plaintiff states her insurance company did not extend their payment for his motel room after September 26, 2025. (Decl., ¶ 8.) Plaintiff also offers an email from her insurance on October 6, 2025 confirming that Defendant was Plaintiff's live-in caretaker who was covered under insurance as such, and reiterated Plaintiff's representations regarding the termination of Defendant. (Ex. 1.)

Plaintiff states Defendant then made arrangements with Plaintiff to return to the Property to retrieve his belongings, but once he was inside, Defendant and his wife Kaitlin McFate surrounded Plaintiff, threatened to have her arrested if she did not let him stay, and Plaintiff left the Property with Defendant still inside. (Decl., ¶¶ 9-10.) Plaintiff offers evidence of her text messages with Defendant arranging the retrieval of his belongings. (Ex. 2.) After this incident, Plaintiff discovered Defendant made unauthorized charges to her credit card and transferred money from Plaintiff's checking account into his own during his employment. (Decl., ¶ 11.)

Defendant sent a text message to Plaintiff, stating he would leave the Property no later than December 1, 2025, which Plaintiff accepted. (Decl., ¶ 13.) Plaintiff also provides a copy of this text message exchange from September 24, 2025. (Ex.

4.) However, on November 28, 2025, Defendant represented to Plaintiff that he would not abide by the notice he gave, and demanded that Plaintiff pay him \$2,500 to move out of the Property. (Decl., ¶ 14). Plaintiff offers a copy of this email exchange. (Ex. 5.) Defendant has remained in the Property and has refused entry to the repair contractors, which Plaintiff learned from the contractors directly. (Decl., ¶¶ 15-16.)

Plaintiff then served Defendant with a 5-day notice of forcible detainer, as well as a 3-day quit for criminal activity toward Plaintiff, both of which were served on December 22, 2025. (Fountain Decl., ¶¶ 3-4; Ex. 6, 7.) Despite these notices, Defendant did not vacate the Property.

When a tenant continues in possession, in person, of property after the expiration of the term for which it is let to the tenant without permission of the landlord, including where the person to be removed became an occupant of the premises as an employee and has been lawfully terminated, the tenant is guilty of unlawful detainer. (Code Civ. Proc., § 1161, subd. (1).) Separately, a tenant is guilty of unlawful detainer where the tenant makes a written offer of surrender which is accepted in writing by the landlord but fails to deliver possession at the time specified in the written notice without the landlord's permission. (Code Civ. Proc., § 1161, subd. (5).)

As to the offer of surrender, Plaintiff has not provided sufficient evidence to establish that Defendant's written offer of surrender was accepted in writing by Plaintiff. Plaintiff's Declaration states that Plaintiff accepted Defendant's offer to surrender the Property by December 1, 2025 and has provided sufficient evidence to establish that Defendant noticed his vacating the Property on or before that date. However, neither the Declaration nor the text exchange show that Plaintiff accepted the offer of surrender in writing as required. Therefore, Plaintiff has not met her burden under Code of Civil Procedure section 1161, subdivision (5).

However, the evidence set forth by Plaintiff, including her Declaration and the exhibits attached to the Exhibit Index as discussed above, establishes that (1) Plaintiff is the owner of the Property, (2) Defendant was permitted to reside on the Property as an employee caretaker of Plaintiff, (3) Defendant's employment as Plaintiff's caretaker was terminated on September 4, 2025, (4) Plaintiff gave proper notice to terminate the tenancy in December of 2025, (5) Defendant remains in possession of the Property without Plaintiff's permission or consent, and (6) Plaintiff provided proper notice to Defendant to end the tenancy by causing him to be served with a 5-day notice to quit.

These facts, established by competent evidence and sworn affidavit, satisfy the requirements for a finding of unlawful detainer.

Thus, because Plaintiff has met her burden, the burden shifts to Defendant.

Defendant has failed to submit any evidence and has not opposed this motion. Therefore, he has failed to establish that any triable issue of disputed material fact exists.

Accordingly, Plaintiff's motion for summary judgment is GRANTED.

IV. Conclusion

Plaintiff Dorothea Cohen's Motion for Summary Judgment is GRANTED.